

2:00PM LINE 11

26-CIV-01392

ELENA LAUCHUNG-NACARINO VS. AMERICAN AIRLINES INC., ET AL

ELENA LAUCHUNG-NACARINO
AMERICAN AIRLINES INC.

JEFF D. NEIDERMAN
ANDREW P. FREDERICK

Defendant Mark Lam's Demurrer to Plaintiff's Complaint

TENTATIVE RULING:

Plaintiff Elena Lauchung-Nacarino has sued her former employer, defendant American Airlines, Inc., and her former supervisor, defendant Mark Lam for harassment based upon race/national origin, harassment based upon sex/gender, and intentional infliction of emotional distress (IIED), as well as other claims not alleged against defendant Lam.

Defendant Lam's demurrer is **SUSTAINED** with leave to amend as to plaintiff's claim for harassment based on race/national origin (second cause of action). Defendant Lam's demurrer is **OVERRULED** as to plaintiff's claims for harassment based on sex/gender (fourth cause of action) and IIED (eleventh cause of action).

Any amended complaint must be filed within ten (10) days of notice of entry of the formal order.

A. Legal Standard

"[I]t is well settled that a general demurrer admits the truth of all material factual allegations in the complaint [citation]; that the question of plaintiff's ability to prove these allegations, or the possible difficulty in making such proof does not concern the reviewing court [citations]; and that plaintiff need only plead facts showing that he may be entitled to some relief [citation]." (*John's Grill, Inc. v. The Hartford Financial Services Group, Inc.* (2024) 16 Cal.5th 1003, 1013 (*John's Grill*), quoting *Alcorn v. Ambro Engineering, Inc.* (1970) 2 Cal.3d 493, 496 (*Alcorn*).)

A court reviewing a demurrer accepts as true the facts alleged in the complaint as well as those of which it may take judicial notice (*John's Grill, supra*, 16 Cal.5th at p. 1008, citing *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318), but does not "assume the truth of contentions, deductions or conclusions of law." (*Aubry v. Tri-City Hosp. Dist.* (1992) 2 Cal.4th 962, 967 (*Aubry*).)

"[I]t is an abuse of discretion to sustain a demurrer without leave to amend if the plaintiff shows there is a reasonable possibility any defect identified by the defendant can be cured by amendment." (*Aubry, supra*, 2 Cal.4th at p. 967.) If there is any reasonable possibility that plaintiff can cure the deficiency by amendment, then leave to amend should be granted even if the demurrer is sustained. (*Hale v. Sharp Healthcare* (2010) 183 Cal.App.4th 1373, 1379.)

B. Discussion

1. Harassment Claims – Race/National Origin and Sex/Gender

To establish a claim of harassment under the FEHA, “an employee claiming harassment based upon a hostile work environment must demonstrate that the conduct complained of was *severe enough or sufficiently pervasive* to alter the conditions of employment and create a work environment that qualifies as hostile or abusive to employees *because of* [their protected characteristic].” (*Lyle v. Warner Brothers Television Productions* (2006) 38 Cal.4th 264, 278-279 (*Lyle*), emphasis in original.)

Plaintiff’s Complaint alleges that she is a 51-year-old Latina female of Peruvian American descent. She further alleges that general and supervisory America Airlines employees, including defendant Lam, discriminated against her, and describes some examples of harassing and discriminatory conduct:

- Asking plaintiff on several occasions if she was Filipina and then telling her that they would only agree to assist and/or train plaintiff if she was Filipina;
- Telling plaintiff that she did not look Latina and that she did not have “Latina features”;
- Asking plaintiff if she was from Peru, what language she spoke and if she spoke “Incan”;
- Refusing and/or failing to provide plaintiff with training because she was not Asian and/or Filipina;
- Making various sexist and insulting comments to plaintiff, and other female employees, including, but not limited to, teasing plaintiff and other female employees about their appearance and the clothes they wore to work.
- On one occasion, plaintiff witnessed Lam ask another female coworker what she was wearing under her blouse and instructed her to open up her shirt in front of other employees.
- On another occasion, plaintiff was asked what she was wearing under her scarf;
- Constantly asking plaintiff and other female employees, what they were doing, where they were going and generally micromanaging the female employees more than the male employees

(Complaint, ¶ 3.)

Lam argues that the Complaint fails to attribute any of the alleged harassing conduct specifically to him, with the exception of the allegation that plaintiff witnessed him ask another

female employee what she was wearing under her blouse and instructed her to open her shirt in front of other employees. That is insufficient to plead conduct by defendant Lam related to *plaintiff's* race or national origin.

Accordingly, Lam's demurrer is **SUSTAINED with leave to amend** as to plaintiff's claim for harassment based on race/national origin (second cause of action).

However, the allegation against defendant Lam involving another female employee, which was witnessed by plaintiff, is sufficient to state a cause of action against Lam for sex/gender harassment.

A plaintiff can establish a hostile work environment based on witnessing the harassment of others:

[S]exual conduct that involves or is aimed at persons other than the plaintiff is considered less offensive and severe than conduct that is directed at the plaintiff. [Citations.] A hostile work environment sexual harassment claim by a plaintiff who was not personally subjected to offensive remarks and touchings requires 'an even higher showing' than a claim by one who had been sexually harassed without suffering tangible job detriment: such a plaintiff *must* 'establish that the sexually harassing conduct permeated [her] direct work environment.' [Citation.] [¶] To meet this burden, the plaintiff generally must show that the harassment directed at others was in her immediate work environment, and that she personally witnessed it. [Citation.] The reason for this is obvious: if the plaintiff does not witness the incidents involving others, 'those incidents cannot affect ... her perception of the hostility of the work environment.' [Citation.]

(*Lyle, supra*, 38 Cal.4th at pp. 284-285.)

"A single incident of harassing conduct is sufficient to create a triable issue regarding the existence of a hostile work environment if the harassing conduct has unreasonably interfered with the plaintiff's work performance or created an intimidating, hostile, or offensive working environment." (Gov. Code, ¶ 12934, subd. (b).) "The existence of a hostile work environment depends upon the totality of the circumstances and a discriminatory remark, even if not made directly in the context of an employment decision or uttered by a nondecisionmaker, may be relevant, circumstantial evidence of discrimination." (*Id.*, subd. (c).)

Here, plaintiff alleges a specific incident of harassment based on sex/gender, in which plaintiff allegedly witnessed defendant Lam ask another female employee what she was wearing under her blouse and instructed her to open her shirt in front of other employees. (Complaint, ¶ 3.) Further, the context of the pleading sufficiently alleges that this type of conduct permeated the work environment, as plaintiff alleges that general and supervisory employees "ma[de] various sexist and insulting comments to plaintiff, and other female employees, including, but not limited to, teasing plaintiff and other female employees about their appearance and the clothes

they wore to work[.]” and that plaintiff was once “asked what she was wearing under her scarf.” (*Id.*, ¶ 3.)

Defendant argues that plaintiff fails to provide the specific context of the comment. Lam may be able to provide context establishing that the alleged conduct was not harassing, however, that is an evidentiary issue that is not properly resolved on a demurrer. At the pleading stage, the allegations are sufficient to state a cause of action for harassment based on sex/gender against Lam.

Accordingly, Lam’s demurrer is **OVERRULED** as to plaintiff’s claim for harassment based on sex/gender.

2. *IIED Claim*

To state a cause of action for intentional infliction of emotional distress, a plaintiff must show all the following: “(1) outrageous conduct by the defendant; (2) the defendant’s intention of causing or reckless disregard of the probability of causing emotional distress; (3) the plaintiff’s suffering severe or extreme emotional distress; and (4) actual and proximate causation of the emotional distress by the defendant’s outrageous conduct.” (*Yau v. Santa Margarita Ford, Inc.* (2014) 229 Cal.App.4th 144, 160.) To be “outrageous,” the conduct “must be so extreme as to exceed all bounds of that usually tolerated in a civilized society.” (*Ibid.*) “Mere insults, indignities, threats, annoyances, petty oppressions, or other trivialities do not constitute extreme and outrageous conduct.” (*Okorie v. Los Angeles Unified Sch. Dist.* (2017) 14 Cal.App.5th 574, 597.)

Here, the allegation that plaintiff allegedly witnessed defendant Lam ask another female employee what she was wearing under her blouse and instructed her to open up her shirt in front of other employees supports an inference that Lam’s conduct was outrageous and exceeded the bounds tolerated in a civilized society. (Complaint, ¶ 3.) As noted above, whether Lam’s conduct was in fact reasonable under the circumstances is an evidentiary question that cannot be resolved on demurrer. Plaintiff has sufficiently pled intent and/or reckless disregard, along with severe distress and causation. (Complaint, ¶¶ 157-165.)

Accordingly, defendant Lam’s demurrer is **OVERRULED** as to plaintiff’s IIED claim (eleventh cause of action). (*See Hughes v. Pair* (2006) 46 Cal.4th 1035, 1050 [Properly pleaded sexual harassment claims can establish outrageous behavior element of IIED].)

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, plaintiff’s counsel shall prepare a written order consistent with the court’s ruling for the court’s signature, providing written notice of the ruling to all parties who have appeared in this action, pursuant to California Rules of Court, Rule 3.1312 and Local Rule 3.403(b)(iv), which states in part that the “prevailing party on a tentative ruling is required to prepare a proposed order ***repeating verbatim the tentative ruling***” (emphasis added). The order should be e-filed only, do not email or mail a hard copy to the court.

2:00PM LINE 12

26-UDL-00556

CARLOTTA CT., LLC VS. BRITTANY L PICKETT ROSE

CARLOTTA CT., LLC
BRITTANY L PICKETT ROSE

STEVEN T. NAUMCHIK

Defendant's Demurrer to Complaint

TENTATIVE RULING:

Defendant Brittany Pickett-Rose's Demurrer to Complaint is **SUSTAINED without leave to amend.**

As a preliminary matter, notice of demurer was purportedly served by mail. "Service by mail must be made in strict compliance with the mandates of [Code of Civil Procedure] sections 1013 and 1013a." (*Aquino v. Superior Court* (2021) 73 Cal.App.5th 104, 111.) The proof of service of the demurrer does not set forth the exact title of the documents served and merely states that the papers were "served ... by mailing a copy" (see Demurrer, filed Aug. 21, 2026 at p. 11:11-12) without "also showing that the envelope was sealed and deposited in the mail with the postage thereon fully prepaid." (Code Civ. Proc., § 1013a, subds. (b), (c); see *id.*, § 1013, subd. (a) [paper must be mailed "in a sealed envelope, with postage paid"].)

A "court lacks jurisdiction to rule on a motion that has not been properly noticed for hearing on the date in question." (*Diaz v. Professional Community Management, Inc.* (2017) 16 Cal.App.5th 1190, 1204–1205.) However, because plaintiff filed an opposition, the court will consider the demurrer.

First, a complaint for unlawful detainer must "[s]tate specifically the method used to serve the defendant with the notice or notices of termination upon which the complaint is based." (Code Civ. Proc., § 1166, subd. (a)(5).) "This requirement may be satisfied ... by attaching a proof of service of the notice or notices of termination served on the defendant[,] which the Complaint does here. (*Ibid.*; see May 11, 2026 Complaint, at p. 2:15-18, exh. A, at p. 3.) However, the proof of service does not show that the sixty-day notice on which the Complaint is based was served, instead referring to an unknown notice to pay rent or quit. (Complaint, exh. A, at p. 3.) Accordingly, while the Complaint alleges that "plaintiff caused to be served upon the defendant a written notice terminating their tenancy and requiring defendant to deliver up possession of said premises on or before May 1, 2026," the Complaint fails to state specifically how that notice was served and therefore fails to state a cause of action.

Second, "after a tenant has continuously and lawfully occupied a residential real property for 12 months, the owner of the residential real property shall not terminate a tenancy without just cause, which shall be stated in the written notice to terminate tenancy." (Civ. Code, § 1946.2, subd. (a).) The Complaint admits that the tenancy began in 2024 (Complaint, at p. 2:11-

13), and thus a statement of just cause in the notice is required unless the Complaint adequately pleads an exemption from the statutory requirement.

The Complaint attempts to rely on the exemption provided by subdivision (e)(8) of Civil Code, section 1946.2, which provides that residential real property alienable separate from the title to any other dwelling unit is exempt provided that (1) the owner is not a real estate investment trust, corporation, limited liability company with a corporation as a member, or management of a mobilehome park and (2) the tenant has been provided a written notice of the exemption “in the rental agreement” using prescribed statutory language. (Civ. Code, § 1946.2, subd. (e)(8).) While the Complaint alleges that it meets the first requirement, it does not expressly allege that written notice of the exemption was provided in the rental agreement. (See Complaint, p. 2:20-28.)

The omission of this allegation is understandable, given that the Complaint admits the rental agreement was oral. (Complaint, at p. 2:11-13.) It nonetheless appears an attempt to cure the absence of written notice was made by altering the rental agreement’s terms to include the written notice pursuant to Civil Code, section 827, which allows a landlord to change the terms of a lease for a periodic tenancy “upon giving notice in writing to the tenant, in the manner prescribed by Section 1162 of the Code of Civil Procedure.” (Civ. Code, § 827, subd. (a)(1).) The written notice of termination includes a paragraph stating that the terms of the subject tenancy were amended to include the written notice of exemption, effective thirty days after service. (Complaint, exh. A, at p. 1 [also reciting the tenancy is month-to-month].)

Taking all the Complaint’s allegations as true, however, it is indisputable that, at the time the notice of termination was served, the property was not exempt from the requirements of Civil Code, section 1946.2, because the lease did not yet include the written notice of the subdivision (e)(8) exemption. Thus, the notice of termination was required to set forth just cause for terminating the tenancy. (See Civ. Code, § 1946.2, subd. (a).) The notice of termination of tenancy on which the Complaint’s cause of action is based does not do so. (See Complaint, exh. A, at pp. 1–2.) Thus, in serving the notice without a statement of just cause, Carlotta failed to comply with a provision of Civil Code, section 1946.2. “An owner’s failure to comply with any provision of this section shall render the written termination notice void.” (Civ. Code, § 1946.2, subd. (g).) The notice of termination is therefore void.

Service of a valid notice to quit is an essential prerequisite and element of an unlawful detainer cause of action. (*Borsuk v. Appellate Division of Superior Court* (2015) 242 Cal.App.4th 607, 611.) The notice must be in strict compliance with statutory requirements. (*Stancil v. Superior Court* (2021) 11 Cal.5th 381, 394–395.) Because proper service of a valid notice is an element of the cause of action, defects in the notice and service thereof are subject to demurrer. (*Attenello v. Basilious* (2022) 88 Cal.App.5th Supp. 1, 7–8; see Code of Civ. Proc., § 1166, subd. (a)(5) [complaint must allege method of service].)

Because the Complaint does not allege proper service of a valid notice, it fails to state a cause of action for unlawful detainer. And because the notice of termination is void, there is no

manner in which the Complaint may be amended. Accordingly, once sufficient proof of proper notice is provided, the demurrer will be sustained without leave to amend.

The Opposition does not and cannot correct the defects cited above.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, defendant shall prepare a written order consistent with the court's ruling for the court's signature, providing written notice of the ruling to all parties who have appeared in this action, pursuant to California Rules of Court, Rule 3.1312 and Local Rule 3.403(b)(iv), which states in part that the "prevailing party on a tentative ruling is required to prepare a proposed order ***repeating verbatim the tentative ruling***" (emphasis added). The order should be e-filed only, do not email or mail a hard copy to the court.

POSTED: 3:00 PM